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Attorneys for Defendant Example Supply Co.

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF ALASKA

In re	)	
	)	
NORTHERN EXAMPLE, LLC,	)	
	)	
Debtor.	)	
	)	
	)	Case No. 26-00100-GS
SAMPLE TRUSTEE, Chapter 7 Trustee,	)	Chapter 7
	)	
Plaintiff,	)	Adv. Proc. No. 26-90010-GS
	)	
v.	)	
	)	
EXAMPLE SUPPLY CO.,	)	
	)	
Defendant.	)	

MEMORANDUM IN SUPPORT OF DEFENDANT'S MOTION TO DISMISS

Defendant Example Supply Co. ("Example") submits this memorandum in support of its motion to dismiss the complaint under Fed. R. Civ. P. 12(b)(6), made applicable by Fed. R. Bankr. P. 7012(b).

Background

The Trustee seeks to avoid as preferential two payments that the Debtor made to Example

for goods delivered on open account. The complaint alleges the dates and amounts of the payments, but it does not allege that the Debtor was insolvent when it made them, or any fact from which insolvency could be inferred beyond the presumption of 11 U.S.C. § 547(f).[1]

Argument

A. The complaint pleads conclusions, not facts.

A complaint must contain "enough facts to state a claim to relief that is plausible on its face." Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570 (2007). Labels and a formulaic recitation of the elements will not do.

B. Leave to amend would be appropriate.

Because the defect is one of pleading, Example does not ask that the dismissal be with prejudice.

Conclusion

The Court should dismiss the complaint with leave to amend within twenty-one days.

DATED this 2nd day of March, 2026.

EXAMPLE LAW LLC
Attorneys for Defendant

By: /s/ Alex B. Counsel
Alex B. Counsel, ABA #0000000

[1] Example does not concede that the presumption applies, and reserves its defenses under § 547(c).

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the 2nd day of March, 2026, a true and correct copy of the foregoing was served electronically through the Court's CM/ECF system on:

Counsel for the Plaintiff
U.S. Trustee

/s/ Alex B. Counsel
Alex B. Counsel